



The First Council of Nicaea was attended by bishops from all parts of the Roman Empire, including Britain and Persia. The Eastern bishops formed the majority at the Council.

filioque (“and the Son”) to the Nicene Creed, arguing that the Holy Spirit proceeded from the Son, as well as the Father. In 1054, this led to the Great Schism between the western Roman Catholic and eastern Greek Orthodox churches when the latter refused to adopt the new wording. Although the Orthodox Church has a collection of early canons (the Pedalion, or “Rudder”), it does not have the Catholic Church’s full code.

As the body of Catholic canons grew, various attempts were made to put them into some sort of order, culminating in the writings of a 12th-century monk named Gratian. In his *Concordia discordantium canonum* (later known as Gratian’s *Decretum*), Gratian analyzed and organized around 3,800 texts on ecclesiastical discipline. With this work, canon law became a legal science, distinct from theology and worthy of study in its own right. ■

of provincial capitals (known as metropolitans) were given authority over the other provincial bishops. However, the bishops of Rome, Antioch, and Alexandria were set above all the rest. The canons adopted at the First Council of Nicaea were binding on every church, but they still did not apply to all the emperor’s subjects because Christians remained a minority in the Roman Empire.

Later Roman emperors campaigned against paganism, and the Christian Church grew increasingly powerful. Christianity finally became the state religion in 380, when Emperor Theodosius I issued the Edict of Thessalonica, which ordered everyone in the empire to become Christian. Anyone who refused was judged to be “demented and insane.” The Church was now able to burn almost all heretical writings. The Edict of Thessalonica was so significant that it was listed in

529 as the first item in Emperor Justinian’s comprehensive collection of imperial laws, the *Codex Justinianus*.

Canon law is imposed

In 381, Theodosius held a second ecumenical council, which took place in Constantinople. This reaffirmed the Nicene Creed as the only legitimate statement of Christian belief. The Council also added a new clause, which said that the Holy Spirit “proceeded from” the Father. Now everyone in the Roman Empire except Jews had to obey canon law: they had to go to church, follow fasts, and believe in the Nicene Creed. Canon law would continue to develop alongside civil law as a separate legal system, eventually with its own courts, judges, and coercive penalties.

For almost 700 years, there was a single Christian Church, but that changed in the 11th century, when Pope Benedict VIII added the word

“ “
Canon law is a unique phenomenon ... because of the unique nature of the Church: a society of divine origin by its institution, yet human in its bearers of authority.
Stephan Kuttner
German historian
(1907–1996)
” ”